

CV-23-007325 MARTINEZ, JORDAN P vs DOCTORS MEDICAL CENTER OF MODESTO - Plaintiff's Motion to Compel Further Responses to Requests for Admission, Set One, and Form Interrogatory No. 17.1; Request for Monetary Sanctions Against Defendant Doctors Medical Center of Modesto and its Counsel of Record - GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Preliminarily, the Court notes that while submitted as a single motion, the papers herein seek orders concerning 2 separate discovery devices: Requests for Admissions, Set One, and Form Interrogatory No. 17.1. Such combined motions are disfavored. In this instance, the Court finds that the issues presented with regard to the 2 sets of discovery requests are sufficiently interrelated as to justify hearing concurrently in the interest of judicial economy, and for that reason the Court will consider those issues together herein. With regard to the issues presented herein, the Court finds that the subject responses do not comply with the requirements of Code Civ. Proc. §§ 2033.220 and 2030.220, and Plaintiff is entitled to further verified responses. Such responses shall be provided within 14 days. The Court further finds that Plaintiff is entitled to an award of monetary sanctions in connection with the instant motion. (Code Civ. Proc. §§ 2033.290(c), 2030.300(c), 2023.010, 2023.030 et seq.) Therefore, sanctions in the amount of \$1,350 are awarded against Defendant and its counsel, jointly and severally, payable to Plaintiff's counsel.

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